

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

KEVIN BRUCE,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER
BRIDGET HEARN, Tax No. 953957, POLICE OFFICER
ELDINA McKENZIE, Tax No. 969213, POLICE
OFFICER YURIY POSOKHOV, Tax No. 951075
SERGEANT EUDY SANTOS, Tax No. 952214, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),Plaintiff designates KINGS
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 17, 2024

Yours, etc.

David M. Hazan

JACOBS & HAZAN, PLLC

DAVID M. HAZAN, ESQ.

Attorney for Plaintiff

30 Vesey Street, 4th Floor

New York, New York 10007

(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER BRIDGET HEARN, TAX NO. 953957, 61ST PRECINCT, 2575
CONEY ISLAND AVE, BROOKLYN, NY 11223
POLICE OFFICER ELDINA MCKENZIE, TAX NO. 969213, 61ST PRECINCT, 2575
CONEY ISLAND AVE, BROOKLYN, NY 11223
POLICE OFFICER YURIY POSOKHOV, TAX NO.951075, 61ST PRECINCT, 2575
CONEY ISLAND AVE, BROOKLYN, NY 11223
SERGEANT EUDY SANTOS, TAX NO. 952214, 67TH PRECINCT, 2820 SNYDER AVE,
BROOKLYN, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KEVIN BRUCE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
BRIDGET HEARN, Tax No. 953957, POLICE OFFICER
ELDINA McKENZIE, Tax No. 969213, POLICE
OFFICER YURIY POSOKHOV, Tax No. 951075
SERGEANT EUDY SANTOS, Tax No. 952214, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.

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Plaintiff KEVIN BRUCE, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on March 17, 2021, at approximately 1:00 pm plaintiff was falsely arrested at the 61st Precinct located at 2575 Coney Island Ave, Brooklyn, NY 11223, without probable cause or legal justification. The defendants arrested plaintiff based upon a complaint made by his ex-girlfriend accusing plaintiff of violating an order of protection. However, prior to arresting plaintiff on March 17, 2021 the officers obtained video evidence that proved plaintiff's ex-girlfriend's complaint against plaintiff was false. The video showed that plaintiff was not present at the location his ex-girlfriend accused him of going on the date she claimed he violated the Order of Protection. Even though the officers knew plaintiff did not commit the crime his ex-girlfriend accused him of committing, the defendant officers falsely arrested plaintiff and charged him with committing that crime anyway. Plaintiff was unlawfully detained at the 61st Precinct for many hours. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. On March 18, 2021, at approximately 2:00 pm claimant was released from custody at Kings County Central Booking without appearing before a judge or being charged with a crime

because the Kings County District Attorney's Office declined to prosecute plaintiff due to the fact that the complaint made against plaintiff by his ex-girlfriend was false. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have a basis to believe he was violating the law or committing a crime. Those officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KEVIN BRUCE is a resident of the state of New York.

3. Defendant POLICE OFFICER BRIDGET HEARN, Tax No. 953957, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER BRIDGET HEARN, Tax No. 953957, was at all times relevant herein, assigned to the 61st Precinct.

5. Defendant POLICE OFFICER BRIDGET HEARN, Tax No. 953957, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER ELDINA McKENZIE, Tax No. 969213, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER ELDINA McKENZIE, Tax No. 969213, was at all times relevant herein, assigned to the 61st Precinct.

8. Defendant POLICE OFFICER ELDINA McKENZIE, Tax No. 969213, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER YURIY POSOKHOV, Tax No.951075, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER YURIY POSOKHOV, Tax No.951075, was at all times relevant herein, assigned to the 61st Precinct.

11. Defendant POLICE OFFICER YURIY POSOKHOV, Tax No.951075, is being sued in his individual and official capacity.

12. Defendant SERGEANT EUDY SANTOS, Tax No. 952214, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT EUDY SANTOS, Tax No. 952214, was at all times relevant herein, assigned to the 61st Precinct and is presently assigned to the 67th Precinct.

14. Defendant SERGEANT EUDY SANTOS, Tax No. 952214, is being sued in his individual and official capacity.

15. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. By way of background, on March 17, 2021, plaintiff's ex-girlfriend had previously made several false complaints against plaintiff to the NYPD and the NYPD documented in its records that she was not a credible individual who has made several false complaints against plaintiff.

22. On January 17, 2021, plaintiff's ex-girlfriend filed a Complaint against plaintiff alleging that he violated an active Order of Protection when on January 17, 2021, plaintiff allegedly knocked on the front door of his ex-girlfriend's apartment and stated, "I want my phone back or I will punch you in the face."

23. Based upon the Complaint made against plaintiff by his ex-girlfriend, the defendant police officers issued an I-Card for plaintiff.

24. Plaintiff's ex-girlfriend has security cameras around her home that would have recorded plaintiff knocking on her door if he had done what he was accused of doing.

25. The defendant police officers viewed the video footage from plaintiff's ex-girlfriend's surveillance cameras and the footage showed that plaintiff was not present at the location where the incident allegedly occurred at the time and on the date that plaintiff was accused of violating an Order of Protection.

26. Although the officers confirmed through the video footage that plaintiff's ex-girlfriend's complaint was not true, the defendants did not cancel the I-Card issued for plaintiff because of the complaint filed against him by his ex-girlfriend.

27. Plaintiff was subsequently contacted by someone who works for the New York City Police Department and was informed that a police officer wanted to speak to him, and the person who contacted plaintiff asked plaintiff if he could come to the 61st Precinct to speak with the officer.

28. Plaintiff agreed to come to the 61st Precinct to speak with the officer on March 17, 2021.

29. On March 17, 2021 at approximately 1:00 pm plaintiff arrived at the 61st Precinct located at 2575 Coney Island Ave, Brooklyn, NY 11223

30. Although the defendant officers knew that plaintiff did not violate the Order of Protection his ex-girlfriend had against him because they viewed the video footage that showed plaintiff was not present at the time and location when he allegedly knocked on the front door of her home and threatened her, the defendant officers unlawfully searched, handcuffed, and falsely arrested plaintiff when plaintiff arrived at the 61st Precinct on March 17, 2021.

31. Plaintiff was unlawfully searched, fingerprinted, interrogated, photographed, and detained in a holding cell for many hours at the 61st Precinct.

32. The defendant officers spoke with plaintiff's ex-girlfriend on March 17, 2021, and for the first time since she made the complaint against plaintiff she conceded to the officers that she did not witness plaintiff come to her home and threaten her in violation of the Order of Protection because she was not home at the time he allegedly came to her home.

33. Plaintiff's ex-girlfriend advised the officers for the first time on March 17, 2021, that her son was home at the time plaintiff allegedly knocked on their door and violated the Order of Protection and he told her what occurred.

34. The defendant officers knew that plaintiff did not commit the crime he was accused of committing because the officers confirmed through the video footage that plaintiff was not present at his ex-girlfriend's home on the date of alleged violation of the Order of Protection. Additionally, the officers knew that plaintiff's ex-girlfriend filed false complaints against him in the past and was not credible. Finally, on the date plaintiff was arrested plaintiff's ex-girlfriend admitted to the defendant police officers for the first time that she was not home when plaintiff allegedly violated the order of protection, and she lied about seeing him at the front door of her home.

35. Although the officers knew plaintiff did not commit the crimes he was arrested for allegedly committing, the officers did not Void his arrest and release him from custody.

36. Instead, the defendant officers continued to unlawfully detain plaintiff.

37. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued.

38. On March 18, 2021, at approximately 2:00 pm claimant was released from custody at Kings County Central Booking without appearing before a judge or being charged with a crime because the Kings County District Attorney's Office declined to prosecute plaintiff due to fact that the complaint made against plaintiff by his ex-girlfriend was false.

39. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have a basis to believe he was violating the law or committing a crime.

40. Those officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

41. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

42. Plaintiff was deprived of his Constitutional and common law rights when the individually named defendants unlawfully stopped, frisked, searched, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

43. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from

continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

44. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

45. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

46. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

47. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

48. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

49. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of due process by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

50. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, denied due process, and falsely arrested and falsely imprisoned without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

57. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

59. Defendants lacked probable cause to search plaintiff.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

63. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

65. Defendants failed to intervene to prevent the unlawful conduct described herein.

66. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and denied the right to due process without an objective factual legal basis

to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

70. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

71. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

72. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

73. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

74. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

75. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, and falsely arresting individuals without a factual basis supporting a legal reason to do so.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

77. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, and arrests.

78. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

79. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff KEVIN BRUCE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 17, 2024

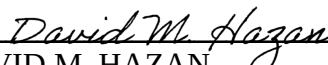
By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 17, 2024



DAVID M. HAZAN